

Tentative Rulings for August 25, 2026 Department M301

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M301 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

CASE #	CASE NAME	HEARING NAME
CVME2512727	ALVARADO CONSTRUCTION & LOGISTICS ENGINEERING INC. VS PELLEGRIN	DEMURRER ON CROSS-COMPLAINT

Tentative Ruling: Demurrer to Entire Complaint for Cross-Defendant Angel Alvarado is sustained with 20 days leave to amend. Demurrer to the Third Cause of Action (negligence, Fifth Cause of Action (Unjust Enrichment) and the Sixth Cause of Action UCL) are overruled. Demurrer to the Eighth (Fraudulent Concealment) and the Ninth Cause of Action (Intentional Misrepresentation) are sustained with 20 days leave to amend.

Background - This breach of contract case. In November 2024, Plaintiff/Cross-Defendant Alvarado Construction & Logistics Engineering, Inc. ("Plaintiff" or "ALC") entered into a written agreement ("Construction Contract") with Defendants/Cross-Complainants Lisa Pellegrin and Toufic Abdulkhaliq for the remodeling of a kitchen/living areas ("Project"). Plaintiff alleges that price of the Project increased due to Defendants' requests for additional and different work. Plaintiff alleges that Defendants failed to make all payments due. As a result, on July 17, 2025, Plaintiff recorded a Mechanic's Lien Claim in the amount of \$134,569.00.

On October 13, 2025, Plaintiff filed its Complaint. It asserts three causes of action for: (1) Breach of Contract; (2) Foreclosure of Mechanic's Lien; and (3) Quantum Meruit.

On February 6, 2026, Cross-Complainants filed a Cross-Complainant. Against Plaintiff and its owner/principal Angel Alvarado ("Angel") and Louie Alvarado and Joe Duckworth. Cross-Complainants allege that the Construction Agreement is void and unenforceable under Bus. & Prof. Code § 7159 because it does not include the required form, content and disclosures. They claim that the work was performed in a substandard manner with inexcusable delays and defective workmanship and overbilling. Cross-Complainants allege that Plaintiff abandoned the Project in a dangerous condition that required them to incur additional costs to complete the work.

The Cross-Complaint includes eight causes of action for: (1) Declaratory Relief - Contract Void and Unenforceable; (2) Declaratory Relief - Mechanic's Lien Invalid; (3) Negligence; (4) Breach of Implied Warranty; (5) Unjust Enrichment; (6) Violation of Bus. & Prof. Code § 17200; (7) Breach of Contract; (8) Fraudulent Concealment; and (9) Intentional Misrepresentation.

ALC and Angel ("Cross-Defendants") now demurrer to the third, fifth, sixth, eighth and ninth causes of action. Cross-Defendants argue that the negligence cause of action is barred by the economic loss rule. Cross-Defendants argue that the unjust enrichment cause of action is improper because there was an express written contract. Cross-Defendants argue that the UCL is duplicative and improperly seeks damages instead of restitution or injunctive relief. Cross-Defendants argue that the fraud-based claims are not pled with the requisite specificity. Angel demurs to the entire Cross-Complaint against him because there are insufficient facts showing alter ego liability.

Cross-Complainants argue that Angel is liable for his individual acts and misrepresentations and as an alter ego of ACL. Cross-Complainants argue that the economic loss rule does not bar the negligence cause of action because there was additional property damages and because Cross-Defendants owed an independent duty to perform in a workmanlike manner. Cross-Complainants argue that the unjust enrichment cause of action is proper because they contend that the Construction Agreement is void and unenforceable. Cross-Complainants argue that the UCL cause of action is based on the unlawful violations of Bus. & Prof. § 7159. Cross-Complainants argue that the fraud claims are specifically pleaded.

In their Reply, Cross-Defendants argue that the Opposition relies on facts that are not alleged in the Cross-Complaint, and therefore cannot be considered on demurrer. Cross-Defendants argue that the Cross-Complaint does not include facts showing that Angel individually committed wrongful acts or as an alter ego. Cross-Defendants argue that the negligence cause of action is barred by the economic loss rule, and the Cross-Complaint contains no allegations of separate property damage. Cross-Defendants again argues that the UCL claim fails because Cross-Complainants seek damages rather than restitution. Cross-Defendants argue that violations of Bus. & Prof. Code § 7159 does not necessarily render a construction contract void. Cross-Defendants argue that any claim for unjust enrichment should be limited to restitution.

Cross-Defendants also move to strike portions of the Cross-Complaint, including the prayer for punitive damages, emotional distress damages, request for attorney's fees not authorized by contract or statute and other improper or irrelevant matter regarding Angel. Cross-Defendants argue that the claim for punitive damages is not supported by specific facts showing fraud, malice or oppression by a managing agent. Cross-Defendants argue that the claim for emotional distress damages is precluded by the economic loss rule. Cross-Defendants argue that the Cross-Complaint cites no statutory or contractual basis for attorney's fees. Cross-Defendants argue that the conclusory alter ego allegations against Angel should be stricken.

Cross-Complainants again argue that there are sufficient allegations of alter ego liability. Cross-Complainants argue that the claims for punitive damages is sufficient based on the fraud and negligent construction. Cross-Complainants argue that emotional distress claims are permitted in construction cases. Cross-Complainants argue that attorney's fees are proper based on the Construction Contract, tort of another doctrine or CCP § 1021.5.

In their Reply, Cross-Defendants again argue that the claims for punitive damages and alter ego liability are insufficiently pled.

Meet and Confer - CCP § 430.41(a) provides that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The demurring party must file and serve with the demurrer a declaration stating the means by which the demurring party met and conferred, and that the parties did not reach an agreement resolving the objections raised in the demurrer.

(CCP § 430.41(a)(3).) These requirements also apply to a motion to strike under CCP § 435.5.

Counsel for Cross-Defendants asserts that in April 2026, he met and conferred with counsel for Cross-Complainants. (Decl. of Diefenbach, ¶ 2.) Despite their discussions, the parties were unable to reach an agreement resolving the issues raised by the Demurrer and Motion to Strike. (Id at ¶ 5.) This satisfies the meet and confer requirement.

Standards on Demurrer - A party may object by demurrer to a complaint on grounds that the pleading does not state facts sufficient to constitute a cause of action. (CCP §430.10(e).) For the purposes of a demurrer, the allegations in the complaint must be accepted as true. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) “In short, the ruling on a demurrer determines a legal issue on the basis of assumed facts, i.e., all those material, issuable facts properly pleaded in the complaint, regardless of whether they ultimately prove to be true.” (*State of California ex rel. Bowen v. Bank of America Corp.* (2005) 126 Cal. App. 4th 225, 240.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. Williams S. Hart Union High School Dist.* (2012) 53 Cal. 4th 861.) In granting a demurrer, courts must only consider properly pleaded or implied factual allegations that appear on the face of the complaint as well as judicially noticed matters. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318)

Alter Ego Liability - Cross-Defendants demur to the entire Cross-Complaint against Angel Alvarado because there are insufficient facts showing alter ego liability. “It is fundamental that a corporation is a legal entity that is distinct from its shareholders.” (*Santa Clarita Organization for Planning & Environment v. Castaic Lake Water Agency* (2016) 1 Cal. App. 5th 1084, 1104.) However, an individual may be held liable as an alter ego of the corporation where (1) there is such unity of interest and ownership that the separate personalities of the corporation and the individual no longer exist and (2) if the acts are treated as those of the corporation alone, an inequitable result will follow. (*Las Palmas Associates v. Las Palmas Center Associates* (1991) 235 Cal. App. 3d 1220, 1249.) “The purpose behind the alter ego doctrine is to prevent defendants who are the alter egos of a sham corporation from escaping personal liability for its debts.” (*Hennessey’s Tavern, Inc. v. American Air Filter Co.* (1988) 204 Cal. App. 3d. 1351, 1358.)

In pleading alter ego liability, the complaint must “include facts showing a unity of interest and a resultant injustice, prerequisites to an alter ego theory.” (*Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 74.) It is not essential that the alter ego doctrine be specifically pleaded. (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal. App. 4th 221, 236 [Holding that only ultimate rather than evidentiary facts were required to plead a theory of alter ego liability.]) However, an allegation that an individual or corporation owns all of the corporate stock and makes all management decision is insufficient to establish alter ego liability. (*Leek v. Cooper* (2011) Instead, several factors are relevant to establishing a unity of interest, including: the commingling of funds, the failure to separate assets, treating the corporation’s assets as those of an individual or other corporation, holding out that the individual is personally liable for the

corporation, failing to maintain separate records, the equitable owners' domination and control of the entity, the use of the corporation as a mere shell or instrumentality for the conduct or affairs of another entity, and the diversion of assets. (*Associated Vendors v. Oakland Meat Co.* (1962) 210 Cal. App. 2d 825, 838-840; *Roman Catholic Archbishop v. Superior Court* (1971) 15 Cal. App. 3d 405, 411.)

Cross-Complainants assert that Angel is an owner, officer, director and/or controlling shareholder of ACL who dominated and controlled ACL to such an extent that the corporation was a mere instrumentality for his personal business, with no separate existence, and was used to perpetrate the wrongs alleged herein. (XComp, ¶17.) They further allege that there is a unity of interest and ownership between Alvarado and the Individual Cross-Defendants, including Angel, such that any individuality and separateness between them has ceased, and Alvarado is the alter ego of the Individual Cross-Defendants. (Id at ¶ 20.) Plaintiffs also allege that Cross-Defendant Joe Duckworth placed the company in Angel's name to protect his own assets. (Id at ¶ 19.) However, this fact is contradicted by other facts showing that the company is held in the name of Alvarado Construction Logistics, Inc. dba Alvarado construction & Logistics. (Id at ¶ 2.) While Cross-Defendants appear to make much of this admission by Duckworth, there is nothing untoward about creating a corporate entity to protect personal assets. One of the purposes of the legal fiction of the corporation as an independent entity is to "insulate officers from liability for corporate contracts." (*France T. v. Village Green Owners Assn.* (1986) 42 Cal. 3d 490, 507-508.) The Cross-Complainants contain no allegations of undercapitalization or commingling of corporate funds or assets or Angel's personal use of corporate assets. Overall, these allegations are insufficient.

Cross-Complainant argues that even if Angel is not an alter ego of ACL, he is liable for his individual wrongful act and omissions. However, the Cross-Complainant contains no allegations of individual wrongdoing by Angel. While each cause of action is directed against all Cross-Defendants, the factual allegations refer only to wrongful acts committed by Alvarado.¹ For example, the pursuant to the Negligence cause of action, Cross-Complainants assert that "Cross-Defendants breached this duty through their reckless and negligent actions and omissions, including but not limited to: failing to complete major phases of work *as described in paragraph 11*; performing work out of sequence *as detailed in paragraph 12*, leading to inefficiencies and additional damage; delivering defective workmanship *as enumerated in paragraph 13*, such as improper framing, electrical hazards, inadequate fastening, and utility disconnections that violated codes and created risks of injury, fire, water damage, and structural failure; abandoning the site in a disorganized and unprotected state; and overbilling for non-existent or substandard value. (XComp, ¶ 11 emphasis added.) Paragraphs 11, 12 and 13 refer to acts of ACL only. As such, it is not clear what acts or omissions were committed by Angel individually. Therefore, the Cross-Complaint fails to state a cause of action against Angel. The Demurrer is sustained.

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Cross-Complainant may be able to cure

¹ In the Cross-Complaint, "Alvarado" is defined as Cross-Defendant Alvarado Construction and Logistics Engineering, Inc.

the defects by alleging facts showing alter ego liability or individual acts committed by Angel. Leave to amend should be granted.

Third Cause of Action Negligence - The elements of a cause of action for negligence are: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal. 4th 913, 917.) “Negligence may be alleged in general terms; that is, it is sufficient to allege an act was negligently done without stating the particular omission which rendered it negligent. There is no requirement that [the plaintiff] identify and allege the precise moment of the injury, or the exact nature of the wrongful act.” (*Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 747-748.)

Cross-Complainants assert that Cross-Defendants owed them a duty of care to perform the remodeling work in a competent, workmanlike manner consistent with industry standards, building codes, and statutory requirements, and to avoid creating hazards or defects at the Property. (XComp, ¶ 29.) 30. Cross-Defendants breached this duty by (a) failing to complete major phases of work; (b) performing work out of sequence leading to inefficiencies and additional damage; (c) delivering defective workmanship, such as improper framing, electrical hazards, inadequate fastening, and utility disconnections that violated codes and created risks of injury, fire, water damage, and structural failure; (d) abandoning the site in a disorganized and unprotected state; and (e) overbilling for non-existent or substandard value. (Id at ¶ 30.)

Cross-Defendants argue that the negligence cause of action is barred by the economic loss rule. An omission to perform a contract obligation is never a tort, unless that omission is also an omission of a legal duty.” (*Erlich v. Menezes* (1999) 21 Cal. 4th 543, 551.) The economic loss rule bars “a plaintiff’s tort recovery of economic damages unless such damages are accompanied by some form of physical harm (i.e. personal injury or property damage.)” (*North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 777.) “Economic loss or harm in this context has been defined as ‘damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits..’ [Citation.]” (*KB Home v. Superior Court* (2003) 112 Cal. App. 4th 1076, 1084) However, the rule does not apply where the conduct amounting to a breach of contract also violates a duty independent of the contract constituting a tort. (*Erlich, supra*, 21 Cal. 4th at 551.)

Cross-Complainants assert that the Proposal/Construction Contract is void and unenforceable. (XComp., ¶8.) If this is true, they are not limited to contract damages. At the pleading stage, Cross-Complainants may allege contradictory or inconsistent causes of action, as well as alternative theories of recovery arising from the same facts. (See *Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1388.) Therefore, Cross-Complainants may assert the claim for Negligence at this point. The Demurrer for Negligence is overruled.

Fifth Cause of Action Unjust Enrichment - Unjust enrichment applies when the defendant receives a benefit and the unjust retention of the benefit at the expense of the plaintiff and the plaintiff does not get the exchange he expected. (*Peterson v. Cellco Partnership* (2008) 164 Cal. App. 4th 1583, 1593.) The equitable remedy of unjust enrichment is “an *obligation* (not a true contract) created by the law without regard to

the intention of the parties, and is designed to restore the aggrieved party to his or her former position by return of the thing or its equivalent in money.” (*Federal Deposit Ins. Corp. v. Dintino* (2008) 167 Cal. App. 4th 333, 346, emphasis in original.) A cause of action for unjust enrichment is not an action on a contract, but rather an obligation created by law for reasons of justice. (*Ibid.*)

Cross-Defendants argue that unjust enrichment is inapplicable when an express contract exists since “there is no equitable reason for invoking restitution when the plaintiff gets exchange he expected.” (See *Durell v. Sharp Healthcare* (2010) 183 Cal.app.4th 1350, 1380-1371.) A plaintiff may not pursue a quasi-contract theory if the parties have an enforceable express agreement. (*Klein v. Chevron U.S.A., Inc.* (2010) 202 Cal. App. 4th 1342, 1388.) However, a plaintiff may plead in the alternative and make inconsistent allegations, such that when the plaintiff is uncertain whether there is an enforceable agreement, he or she may plead claims based on both the existence and nonexistence of the express agreement. (*Ibid.*)

Here, the Cross-Complaint includes causes of action for Unjust Enrichment (XComp, ¶¶ 36-39) and Breach of Contract (*Id* at ¶¶ 43-45.) Cross-Complainants contend that the Proposal/Construction Contract is not enforceable due to several violations of Bus. & Prof. Code §7159. (*Id* at ¶8.) Because Cross-Complainants’ primary theory of the case is that there is no valid and enforceable contract, the Unjust Enrichment cause of action is properly asserted. The Demurrer is overruled.

Sixth Cause of Action Unfair Business Practices - Bus. & Prof. Code § 17200 states that “unfair competition shall mean and include any unlawful, unfair or fraudulent business act or practice. The Unfair Competition Law’s scope is broad and coverage is sweeping. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal. 4th 163, 180.) “[B]ecause the statute is framed in the disjunctive, a business practice need meet only one of the three criteria to be considered unfair competition.” (*Wiseman Park, LLC v. Southern Glazer’s Wine & Spirits, LLC* (2017) 16 Cal. App. 5th 110, 129.) UCL claims must be pled with reasonable particularity. (*Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal. App. 5th 1234, 1261.)

Under the unlawful prong, the UCL borrows violations of other laws and treats them as unlawful business practices that are independently actionable under the UCL. (*Smith v. State Farm* (2001) 93 Cal.App.4th 700, 718.) “Virtually any law or regulation—federal or state, statutory or common law—can serve as a predicate for a § 17200 ‘unlawful’ violation.” (*Wiseman Park*, *supra*, 16 Cal. App. 5th at 130.)

Here, the UCL cause of action is based on violations of Bus. & Prof. Code § 7159, which provides extensive requirements for home improvement contracts. The Cross-Complaint contains a list of several alleged violations. (See XComp., ¶8.) This is sufficient to state a cause of action for unfair/unlawful business practices under the UCL.

Cross-Defendants argue that the UCL cause of action merely repackages the alleged construction defects, billing disputes, and purported statutory violations already encompassed within the other causes of action. However, the only other cause of action based on the alleged contract violations is the first declaratory relief cause of action,

which, obviously, does not provide for any restitution or disgorgement. (XComp., ¶23.) Thus, the two causes of action are not duplicative.

Cross-Defendants argue that Cross-Complainants improperly seek damages in connection with the UCL cause of action. Damages, including compensatory and punitive damages, are not available under Bus. & Prof. Code § 17203. (*Zhang v. Superior Court* (2013) 57 Cal. 4th 364, 376.) Cross-Complainant allege that as a result of the violations, they have suffered damages exceeding \$342,442, plus attorney fees and costs. (XComp, ¶ 42.) However, the Prayer also includes a claim for restitution and disgorgement. To be sustained, a demurrer must dispose of an entire cause of action. (*PH II, Inc. v. Superior Court* (1995) 33 Cal. App. 4th 1680, 1682.) Because striking the allegations of Paragraph 42, assuming it is a claim for damages, will not completely dispose of the sixth cause of action. As such, the Demurrer is overruled.

Eighth and Ninth Causes of Action Fraudulent Concealment and Intentional Misrepresentations and Intentional Misrepresentation - The elements of fraud are: (1) misrepresentation or concealment, (2) knowledge of falsity, (3) intent to defraud, (4) justifiable reliance, and (5) resulting damage. (*Lovejoy v. AT&T Corp.* (2004) 119 Cal. App. 4th 151, 157-158.) The elements of an action for fraud based on concealment are: (1) concealment or suppression of a material fact, (2) a duty to disclose the fact to the plaintiff, (3) intent to defraud, (4) plaintiff's lack of knowledge and reliance, and (5) damage caused by the concealment. (*Lovejoy v. AT&T Corp.* (2004) 119 Cal. App. 4th 151, 157-158.)

Every element of the cause of action must be pled factually and specifically, and the policy of liberal pleading does not apply. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal. 4th 26, 47.) This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered." (*Lazar v. Superior Court* (1996) 12 Cal. 4th 631, 645.) As concealment is a species of fraud, it must also be pled with specificity. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878.) "California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim." (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal. 5th 1, 43.) "If the duty to disclose arose by virtue of the parties' relationship and defendant's exclusive knowledge or access to certain facts . . . the complaint must also include specific allegations establishing all of the required elements, including (1) the content of the omitted facts; (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission." (*Id* at 43-44.) In the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representations were made. (*West v. JPMorgan Chase Bank* (2013) 214 Cal.App.4th 780, 793.)

In this case, the fraud causes of action were not pled with specificity. Cross-Complainants allege only that Cross-Defendants intentionally misrepresented their ability to complete the project competently and in compliance with law, including through

the vague Proposal and assurances of performance, while knowing or recklessly disregarding the defects and violations detailed herein. (XComp, ¶ 51.) There are no facts showing who made the misrepresentations or when or how they were made. Likewise, Cross-Complainants allege that Cross-Defendants fraudulently concealed defects such as improper framing, electrical hazards, inadequate fastening, and utility issues as detailed in while demanding payments and recording the lien, intending to deceive Cross-Complainants into believing the work was progressing acceptably. (Id at ¶ 48.) These allegations are vague and do not meet the heightened pleading standard for fraud-based causes of action. Accordingly, the Demurrer is sustained as to the eighth and ninth causes of action. Cross-Complainants may be able to add greater specificity to cure the defects. Leave to amend is granted.

2.

CASE #	CASE NAME	HEARING NAME
CVME2512727	ALVARADO CONSTRUCTION & LOGISTICS ENGINEERING INC. VS PELLEGRIN	MOTION TO STRIKE CROSS- COMPLAINT

Tentative Ruling: Motion to Strike is Granted on Punitive Damages, Emotional Distress, and Attorney’s Fees with 20 days leave to amend.

Motion to Strike -Pursuant to CCP §436(a), the court may “strike out any irrelevant, false, or improper matter inserted in any pleading.” When ruling on a motion to strike, the allegations of the pleading are assumed to be true and read in their context. (*Clauson v. Superior Court* (1998) 67 Cal. App. 4th 1253, 1255.) A pleading is to be liberally construed. (*CLD Construction v. City of Ramon* (2004) 120 Cal. App. 4th 1141, 1146.)

Punitive Damages - A motion to strike is the proper procedure to attack a claim for punitive damages. (CCP §§ 435-436; *Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) Plaintiffs may recover exemplary or punitive damages where it is proven that “the defendant has been guilty of oppression, fraud or malice.” (Civ. Code §3294(a).) As defined in the statute, malice is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others,” while oppression is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294(c)(1) and (2).) As used in the statute, despicable conduct is conduct which is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*American Airlines, Inc. v. Sheppard Mullin Richter & Hampton* (2002) 96 Cal. App. 4th 1017, 1050.) “Fraud” is defined as, “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294(c)(3).) “A fraud cause of action seeking punitive damages need not include an allegation that the fraud was motivated by the malicious desire to inflict injury upon the victim. The pleading of fraud is sufficient.” (*Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 610.)

A plaintiff must plead facts showing fraud, oppression or malice to support a claim for punitive damages. (*Grieves v. Superior Court* (1984) 157 Cal. App. 3d 159, 166.) The pleading must contain factual allegations of wrongful motive, intent, or purpose. (*Cyrus v. Haveson* (1976) 65 Cal. App. 3d 306, 317.) “[A] conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of ‘oppression, fraud, or malice, express or implied,’ within the meaning of section 3294.” (*Brousseau v. Jarrett* (1977) 73 Cal. App. 3d 864, 872.) However, such conclusory allegations will not be stricken where they are supported by other *factual* allegations in the complaint. (Weil & Brown, Cal. Practice Guides: Civ. Pro. Before Trial (The Rutter Group, 2020) P. 7:181, p. 7(i)-78, emphasis in the original; see also *Perkins v. Superior Court* (1981) 117 Cal. App. 3d 1, 6.)

Because the fraud claims were not sufficiently pled, the Motion is essentially moot as to the claim for punitive damages. As stated above, punitive damages are not available under the UCL. (*Zhang v. Superior Court* (2013) 57 Cal. 4th 364, 376.) Additionally, punitive damages may not be awarded on contract claims. (*Cates Construction, Inc. v. Talbot Partners* (1999) 21 Cal. 4th 28, 61.) Moreover, punitive damages are not available for routine or even gross negligence. (*Colombo v. BRP US Inc.* (2014). 230 Cal. App. 4th 1442, 1456.) Here, without the allegations of fraud, Plaintiff’s claims regarding the failure to perform the construction work in a workmanlike manner appear to constitute negligence rather than despicable conduct. As such, the Motion is granted with leave to amend.

Emotional Distress -Cross-Complainants seeks damages for emotional distress in connection with their Negligence cause of action. (XComp., ¶31.) “No California case has allowed recovery for emotional distress arising solely out of property damage” (*Erllich, supra*, 21 Cal. 4th at 554; citing *Cooper v. Superior Court* (1984) 153 Cal. App. 3d 1008, 1012.) Generally, “unless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant’s breach of some other legal duty and the emotional distress is proximately caused by that breach of duty. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests.” (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal. 4th 965, 985.)

Although in their Opposition to the Motion to Strike, Cross-Complainants allege that the negligent construction created safety risks which caused severe emotional distress, this is not clear from the facts alleged in the Cross-Complainant. Accordingly, the Motion to Strike is granted with leave to amend.

Attorney’s Fees - Cross-Defendants move to strike the Prayer for attorney’s fees. California follows the traditional “American rule” that each party to litigation ordinarily pays its own attorney fees. (*Musaelian v. Adams* (2009) 45 Cal.4th 512, 516.) Attorney’s fees are recoverable as costs only when authorized by contract, statute, or law. (CCP §1033.5(a)(10)(A)-(C).)

Cross-Complainants have not pled any statutory basis for the claim for attorney’s fees. Nor do they allege that the Proposal/Construction Contract contained a fee-shifting provision.

In their Opposition, Cross-Complainants argue that they may seek fees under the “tort of another” theory. The tort of another doctrine is an “exception” to the American Rule whereby “[a] person who, through the tort of another, has been required to act in the protection of his interests by bringing or defending an action against a third person is entitled to recover compensation for the reasonably necessary loss of time, attorney’s fees, and other expenditures thereby suffered or incurred.” (*Prentice v. North Amer. Title Guar. Corp.* (1963) 59 Cal.2d 618, 620.) In such cases, the attorneys’ fees are recoverable as damages resulting from the tort in the same way that medical fees would be part of the damages in a personal injury action. (*Sooy v. Peter* (1990) 220 Cal. App. 3d 1305, 1310.) Here, Cross-Complainants alleged that they were required to prosecute or defend a third-party lawsuit. It is clear from the allegations that Cross-Complainants seek the legal fees associated with the present lawsuit. As such, the tort of another doctrine does not apply.

Cross-Complainants also argue that they may seek punitive damages pursuant to CCP §1021.5, which provides that a court may award attorneys’ fees to a successful party in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any. Recovery is available only if the proceeding: (1) served to vindicate an important public right; (2) conferred a significant benefit on the public or a large class of persons; and (3) imposed a financial hardship on the plaintiff which was out of proportion to his or her individual stake in the matter. (*Baggett v. Gates* (1982) 32 Cal. 3d 128, 142.) The benefit must be more than a cautionary message to the defendant that its conduct is wrongful. (*Flannery v. California Highway Patrol* (1998) 61 Cal. App. 4th 629, 635.) “Section 1021.5 was not designed as a method for rewarding litigants motivated by their own pecuniary interests who only coincidentally protect the public interest.” (*Angelheart v. City of Burbank* (1991) 232 Cal. App. 3d 460, 470.) The Cross-Complainant contains no claims that would confer a substantial benefit on the general public. This case involves a private dispute and is motivated entirely by Cross-Complainants pecuniary interests.

Because Cross-Complainants have pled no exception to the American Rule, the Prayer for attorney’s fees is stricken.

3.

CASE #	CASE NAME	HEARING NAME
CVME2608137	COUNTY OF RIVERSIDE VS RAHMAN	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: Preliminary Injunction is Granted.

4.

CASE #	CASE NAME	HEARING NAME
CVME2610842	HARRIS VS DELAWARE STATE UNIVERSITY	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: Preliminary Injunction is Denied.

Background - Daije Harris ("Plaintiff") contends that they have fulfilled all academic requirements mandated by Delaware State University ("University") to obtain a master's degree. Plaintiff alleges that University has wrongfully withheld their official academic transcripts, letter grades, and physical diploma. The complaint asserts the following causes of action: (1) breach of contract, (2) conversion, (3) promissory estoppel, (4) intentional infliction of emotional distress, and (5) injunctive relief.

Plaintiff seeks a preliminary injunction compelling University and National Collegiate Athletic Association (collectively "Defendants") to immediately release, issue, and transmit to Plaintiff their official unredacted graduate academic transcripts, letter grades, and diploma. Plaintiff asserts that they are likely to prevail on the merits of their claims and will be injured if this motion is not granted.

In opposition, University contends that this is the second time that Plaintiff has attempted to pursue such claims. It contends Plaintiff's lawsuit in Delaware was ultimately dismissed as to University. It argues that University is not subject to California jurisdiction, the statute of limitations has run, Plaintiff's claims are barred by res judicata, and they have failed to show that a preliminary injunction is justified.

Analysis - The purpose of a preliminary injunction is to preserve the status quo pending trial on the merits. In order to issue a preliminary injunction, the Court must balance the parties' interests. In balancing the parties' interests, the Court must exercise discretion "in favor of the party most likely to be injured . . ." (*Robbins v. Superior Court* (1985) 38 Cal.3d 199, 205.) The Court is to consider two interrelated factors: (1) the injury to plaintiff in absence of the injunction verses the injury the defendant is likely to suffer if an injunction is issued; and (2) is there a reasonable probability that plaintiffs will prevail on the merits at trial. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 633; *Robbins, supra*, 38 Cal.3d at 206.) "The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (*Butt v. State of California* (1992) 4 Cal.4th 668, 678.) It is the plaintiff's burden to "show all elements necessary to support issuance of a preliminary injunction." (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.) "An injunction properly issues only where the right to be protected is clear, injury is impending and so immediately likely as only to be avoided by issuance of the injunction." (*E. Bay Mun. Util. Dist. v. Cali. Dep't of Forestry & Fire Prot.* (1996) 43 Cal.App.4th 1113, 1126.) "[I]n order to obtain injunctive relief the plaintiff must ordinarily show that the defendant's wrongful acts threaten to cause irreparable injuries, ones that cannot be adequately compensated in damages." (*Intel Corp. v. Hamidi* (2003) 30 Cal.4th 1342, 1352.)

Plaintiff has the burden to establish they are entitled to injunctive relief. Plaintiff has failed to meet this burden. Plaintiff does not address any of their causes of action –

breach of contract, conversion, promissory estoppel, and intentional infliction of emotional distress. Plaintiff only makes a vague assertion that they are likely to prevail on their claims. Plaintiff does not identify any of the required elements for these causes of action or how their evidence supports said claims. Additionally, the evidence provided is not sufficient to establish the claims.

A breach of contract cause of action requires: (a) contract, (2) the plaintiff performed or was excused from performing, (3) a breach of the contract by defendant, and (4) resulting damages. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) The only evidence provided by Plaintiff is a short declaration. In this declaration, Plaintiff fails to provide a copy of the contract at issue. Plaintiff fails to state that they entered into an agreement with University. Plaintiff fails to point to any provision in said agreement they contend that University breached. Due to these issues, Plaintiff fails to establish a probability of prevailing on her breach of contract claim.

A cause of action for conversion requires: (1) plaintiff's ownership or rights of possession of personal property, (2) defendant's disposition of the personal property in a manner that is inconsistent with the plaintiff's property right, and (3) damages. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.) While Plaintiff asserts that they complied with all academic requirements for her degree, they provide no evidence or authority that this actually entitled their copies of her transcripts, grades, or a diploma. Plaintiff provides no graduation requirements in place by University. Plaintiff does not discuss or provide documents supporting what was required to obtain these things. Plaintiff provides no evidence that they complied with all of University's requirements. As such, Plaintiff fails to establish a probability of prevailing on this cause of action.

Promissory estoppel requires a clear promise, reliance by the party to whom the promise is made, reasonable reliance, and injury to the party asserting estoppel. (*Granadino v. Well Fargo Bank, NA* (2015) 236 Cal.App.4th 411, 416.) For promissory estoppel to apply, detrimental reliance must be shown. (*Aceves v. U.S. Bank, N.A.* (2011) 192 Cal.App.4th 218, 228-230.) Plaintiff fails to provide any evidence regarding a promise made by University. Plaintiff provides no evidence of detrimental reliance on their part. As such, Plaintiff has failed to establish a probability of prevailing on this claim.

Intentional infliction of emotional distress requires: (1) outrageous conduct, (2) intent to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional distress, and (4) accrual and proximate causation. (*Stoiber v. Honey* (1980) 101 Cal.App.3d 903, 921.) Behavior is outrageous if it exceeds all bounds typically tolerated by decent society. (*Id.*) There is no liability under a claim for intentional infliction of emotional distress for insults, threats, annoyances, indignities, petty oppressions, or other trivial behavior. (*Pilotrik v. Melhaus* (2012) 208 Cal.App.4th 1590, 1610.) There is no evidence of outrageous conduct on the part of University. Plaintiff fails to provide any evidence that University's conduct was done with the intention to cause emotional distress to Plaintiff or that Plaintiff sustained severe emotional distress. As such, Plaintiff again fails to establish a probability of prevailing on this claim.

Since Plaintiff has failed to meet their initial burden, the motion is denied.